ſole or aggregate, and whether eccleſiaſtical, civil, or eleemoſynary. With regard to all eccleſiaſtical corporations, the ordinary is their viſitor, ſo conſtituted by the canon law, and from thence derived to us. The pope formerly, and now the king, as ſupreme ordinary, is the viſitor of the arch-biſhop or metropolitan; the metropolitan has the charge and coercion of all his ſuffragan biſhops; and the biſhops in their ſeveral dioceſes are the viſitors of all deans and chapters, of all parſons and vicars, and of all other ſpiritual corporations. With reſpect to all lay corporations, the founder, his heirs, or aſſigns, are the viſitors, whether the foundation be civil or eleemoſynary; for in a lay incorporation the ordinary neither can nor ought to viſit [a].

I KNOW it is generally ſaid, that civil corporations are ſubject to no viſitation, but merely to the common law of the land; and this ſhall be preſently explained. But firſt, as I have laid it down as a rule that the founder, his heirs, or aſſigns, are the viſitors of all lay-corporations, let us enquire what is meant by the *founder*. The founder of all corporations in the ſtricteſt and original ſenſe is the king alone, for he only can incorporate a ſociety: and in civil incorporations, ſuch as mayor and commonalty, &c, where there are no poſſeſſions or endowments given to the body, there is no other founder but the king: but in eleemoſynary foundations, ſuch as colleges and hoſpitals, where there is an endowment of lands, the law diſtinguiſhes, and makes two ſpecies of foundation; the one *fundatio incipiens*, or the incorporation, in which ſenſe the king is the general founder of all colleges and hoſpitals; the other *fundatio perficiens*, or the dotation of it, in which ſenſe the firſt gift of the revenues is the foundation, and he who gives them is in law the founder: and it is in this laſt ſenſe that we generally call a man the founder of a college or hoſpital [b]. But here the king has his prerogative: for, if the king and a private man join in endowing an eleemoſynary foundation, the king alone ſhall be the founder of it. And, in general, the king being the ſole founder of all civil corporations, and the en-

[a] 10 Rep. 31. [b] 10 Rep 33.

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